

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Plaintiff designates
Kings County as the
place of trial

----- X
BOBBY MCEACHIN,

Plaintiff,

Basis of venue is
county of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK,
NYPD SGT. MICHAEL HANSSON,
NYPD DETECTIVE KIMBERLY HUACON,
NYPD SGT. PEDRO BOBE and
NYPD DETECTIVE JOHN BARTEK,

Defendants.

----- X

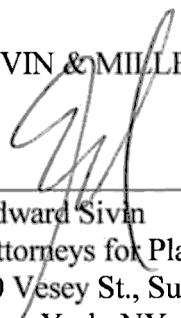
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 18, 2018

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK,

c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD SGT. MICHAEL HANSSON,

c/o NYPD 75th Pct., 1000 Sutter Ave, Brooklyn, NY 11208

NYPD DETECTIVE KIMBERLY HUACON,

c/o NYPD 77th Detective Squad, 127 Utica Ave, Brooklyn, NY 11213

NYPD SGT. PEDRO BOBE,

c/o NYPD Headquarters Security, One Police Plaza, New York, NY 10038

NYPD DETECTIVE JOHN BARTEK,

c/o NYPD 83rd Pct. Detective Squad, 480 Knickerbocker Ave, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
BOBBY MCEACHIN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD SGT. MICHAEL HANSSON,
NYPD DETECTIVE KIMBERLY HUACON,
NYPD SGT. PEDRO BOBE and
NYPD DETECTIVE JOHN BARTEK,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the state-law causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD SGT. MICHAEL HANSSON (hereinafter "Hansson") was and is a police sergeant employed by the NYPD.

6. That at all times herein mentioned, Hansson was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Hansson was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD DETECTIVE KIMBERLY HUACON (hereinafter "Huacon") was and is a police detective employed by the NYPD.

9. That at all times herein mentioned, Huacon was acting within the course and scope of her employment with the NYPD.

10. That at all times herein mentioned, Huacon was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD SGT. PEDRO BOBE (hereinafter "Bobe") was and is a police sergeant employed by the NYPD.

12. That at all times herein mentioned, Bobe was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Bobe was acting under color of state law.

14. That at all times herein mentioned, defendant NYPD DETECTIVE JOHN BARTEK (hereinafter "Bartek") was and is a police detective employed by the NYPD.

15. That at all times herein mentioned, Bartek was acting within the course and scope of his employment with the NYPD.

16. That at all times herein mentioned, Bartek was acting under color of state law.

THE FACTS

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That on or about June 17, 2014, in the County of Kings, City and State of New York, officers and detectives with the NYPD, including but not limited to Hansson, Huacon, Bobe, and Bartek (hereinafter referred to collectively as “the officers”), acting collectively and jointly, maliciously initiated and/or caused to be initiated a criminal prosecution in which plaintiff was charged with crimes of which he was innocent, of which the officers knew plaintiff to be innocent, and which the officers did not have probable cause to believe plaintiff had committed.

19. That in support of the aforementioned prosecution, the officers fabricated evidence that they then forwarded to prosecutors and fellow officers and knowingly made false statements to prosecutors and fellow officers regarding observations that they allegedly made with respect to plaintiff and other events immediately preceding the prosecution of plaintiff.

20. That in support of the aforementioned prosecution, Hansson executed a Criminal Court Complaint in which he swore to statements that he knew were false, including but not limited to that he observed plaintiff in possession of a firearm and that he observed plaintiff throw the firearm into the street, and that a confidential informant told Hansson that he saw plaintiff in possession of a firearm and discharge said firearm at a certain location.

21. That in support of the aforesaid prosecution, the officers repeated these false statements to prosecutors and others over a period of several years.

22. That in support of the aforesaid prosecution, the officers repeated these false statements during sworn in-court testimony.

23. That in support of the aforementioned prosecution, the officers also withheld

exculpatory evidence from prosecutors and from plaintiff's defense counsel.

24. That the aforesaid false statements, fabricated evidence, and withheld exculpatory evidence, constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

25. That as a result of the actions of the officers, plaintiff was incarcerated for several days and was prosecuted for nearly four years.

26. That as a result of the actions of the officers, plaintiff was required to make numerous court appearances and suffered a deprivation of his liberty.

27. That on or about January 29, 2018, after a jury trial and verdict of not guilty, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

28. That at all times herein mentioned, each of the officers observed and/or had knowledge of the illegal and unconstitutional conduct of his or her fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

29. That defendants' actions were intentional, malicious, and without excuse or justification.

30. That as a result of the actions of defendants, plaintiff sustained severe emotional distress and loss of liberty, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

31. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under State Law)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Malicious Prosecution)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted without probable cause and for crimes of which the officers knew plaintiff to be innocent and with charges on which the officers knew the prosecution likely would not succeed constituted a malicious prosecution of plaintiff and an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions by the officers in fabricating evidence and

conveying false information and accusations about plaintiff constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on *Brady* Violation)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the aforesaid actions by the officers in withholding exculpatory evidence and information constituted a violation of plaintiff's rights under the Fourteenth Amendment to the United States Constitution and under *Brady v. Maryland*, 373 U.S. 83, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

40. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

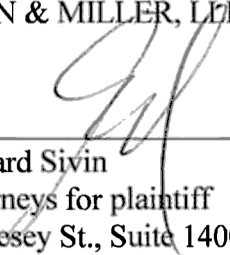
41. That as a result of the deliberate failure of the officers to intervene, plaintiff sustained the injuries alleged herein and is entitled to recover damages against the officers under 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42 U.S.C.

§ 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
September 18, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 18, 2018



EDWARD SIVIN

Index No.

Year 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BOBBY MCEACHIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
September 18, 2018